

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8a-z490-9f96
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001
Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479
Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-5846
Comment on FR Doc # 2025-02305

Submitter Information

Name: Felicia Bartoli

[REDACTED]

General Comment

I have spent my life as a technical illustrator and witnessed first hand the downsizing of this industry and the decrease in quality as a result. AI feeds off of my technical manuals and creates worse outputs with larger inaccuracies in the work.

See attached file for more details.

Attachments

Information on the Development of an Artificial Intelligence

March 15, 2025

From:
Felicia Bartoli
Technical Illustrator

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American who works fulltime for technical publications company and part time as a small business creator. I have worked hard for years to develop the skills and knowledge to build my portfolio, and have been lucky enough to make a decent living and support my family – until recently.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses like mine and disrupt industries with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace. On top of all that the work they send back is often worse quality and frequently requires edits and tweaks to make it publication ready.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to

have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

These questions are twofold when it comes to company creations. What is the incentive for companies to post training videos or operation manuals online if its going to be duplicated by knock off brands? How can they ensure their work won't be stolen? Programs like OpenAI have used member exclusive content like New York Times articles, Patreon posts, and John Deere manuals, that were locked behind paywalls and subscriptions. If AI copyright exceptions are created, what will protect industries from their own competition? How will this not create a race to the bottom as innovation is left behind for cheap copycats? And most importantly, how would this create jobs when the past year and a half has led to thousands of job layoffs within tech and publication industries?

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.